

Sample Employer, Inc. | Sample PBM, Inc.
PBMA, eff. 2026-01-01 · 3 years, 1-year auto-renewal · May 10, 2026

FIDUCIARY ALIGNMENT SCORE

59 /100
CONCERN

EXECUTIVE SUMMARY

Clean exit and neutral pharmacy network: silent on fiduciary commitment and audit access.

This contract offers a clean 90-day no-cause termination and explicit non-ownership of network pharmacies. It falls short on three load-bearing provisions: the PBM explicitly disclaims fiduciary status, audit rights are limited to one annual audit from a PBM-approved firm with an October-to-January blackout, and rebate pass-through carves out administrative fees, market development funds, and performance payments.



DOMAIN BREAKDOWN

DOMAIN 1 Fiduciary Conduct 59 P1, P6, P8 CONCERN	DOMAIN 2 Financial Integrity 60 P2, P3, P10 FAIR	DOMAIN 3 Oversight and Control 58 P4, P5, P7, P9 CONCERN
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PROVISION SCORES

#	Provision	Score	Rating	Weight
P1	Fiduciary Loyalty Commitment	38	RED FLAG	10%
P2	Pass-Through Pricing Integrity	52	CONCERN	10%
P3	Rebate & Manufacturer Revenue	62	FAIR	10%
P4	Data Ownership & Rights	64	FAIR	10%
P5	Audit Rights & Verification	38	RED FLAG	10%
P6	Conflict of Interest & Neutrality	80	GOOD	10%
P7	Carve-Out & Vendor Rights	50	CONCERN	10%
P8	Lowest Net Cost & Clinical Integrity	60	FAIR	10%
P9	Termination & Clean Exit	80	GOOD	10%
P10	Administrative Fee Transparency	65	FAIR	10%
FIDUCIARY ALIGNMENT SCORE		59	CONCERN	100%

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